

LAGUNA v. CLOUGH, et al

22CV46348

DEMURRER TO COMPLAINT

This is a quiet title and specific performance action involving an alleged oral promise to make a testamentary gift of real property. There are related actions (see 22UD13972 and 22PR8530). Before the Court is a demurrer to the operative Complaint, filed 10/07/22. Although the CCP §430.41 declaration filed with the demurrer suggests that plaintiff and his counsel intend to defend the pleading, no opposition appears in the court file. The time to file an amended pleading as a matter of right has lapsed (CCP §472), leaving this Court with the requisite task of deciding whether defendant's objection to the Complaint is well-taken, and if any method of cure is feasible.

Pertinent Background

In or about December of 2019, the brother of Charles Laguna (hereinafter "Charles" for ease of reference) purchased property on Black Oak Drive next door to Elizabeth Mary Edwards (hereinafter "decedent"). As a "neighborly gesture," Charles began providing assistance to decedent completing various household chores.

According to Charles, decedent asked him to move into her home and provide "regular" assistance, and orally promised him that in exchange for that effort she would – upon her passing – gift him her residence (290 Black Oak Drive, Mokelumne Hills, APN 020-029-123).

According to decedent's family, Charles provided care to decedent in exchange for free room and board, not an ownership stake in the residence.

Decedent died 05/20/22, leaving no testamentary instruments of any kind.

On 07/20/22, decedent's great-nephew Corbin Clough (hereinafter "Corbin" for ease of reference) commenced a petition for probate in this County (see 22PR8530).

Decedent's heirs-at-law include two siblings and a niece. Although Corbin indicated in the petition that decedent's estate included real property valued at \$726,500, based on the Inventory & Appraisal it would appear that her real property has a gross value closer to \$450,000 (without regard to encumbrances). Decedent's residence was appraised by the probate referee at \$250,000.

On 08/21/22, Corbin caused to be delivered to Charles a 60-Day Notice to Terminate in accordance with Civil Code §1946.2(b), advising Charles that the residence was going to be "pulled from the rental market" at that time.

On 10/07/22, Charles filed this civil action to quiet title in his favor based upon decedent's alleged oral promise to gift the property to him, along with his alleged material and detrimental reliance thereon. (See, e.g., Evidence Code §662 and *Monarco v. Greco* (1950) 35 Cal.2d 621, 624.) Charles named Corbin as a defendant in his representative capacity, but did not present Corbin with a creditor's claim in the probate action until several months later.

On 10/28/22, Corbin filed an unlawful detainer action against Charles (22UD13972). Charles appeared by way of a demurrer and motion to stay/abate in favor of the civil action. Corbin opposed both motions, raising first a number of technical defects relating to service and notice, and then more general objections regarding the propriety of proceeding expeditiously with the UD case.

On 12/27/22, all three cases were deemed related and consolidated for all purposes – with the civil action serving as the lead case.

The Demurrer

A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein), or from matters outside the pleading which are judicially noticeable. The complaint is read as a whole. Material facts properly pleaded are assumed true, but contentions, deductions or conclusions of fact/law are not. In general, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (CCP §§ 425.10(a), 459; in accord, *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Gray v. Dignity Health* (2021) 70 Cal.App.5th 225, 236.)

The operative pleading herein contains four causes of action: specific performance via constructive trust; quiet title; declaratory relief; and injunctive relief. All four causes of action involve the exact set same of facts, to wit: an alleged oral contract to posthumously gift real property in exchange for inter vivos assistance. As previously hinted, and in light of the obvious statute of frauds concern this kind of claim is typically framed by two causes of action: breach of oral contract; and promissory estoppel (or fraudulent inducement if no intent to perform ever existed). (See Civil Code §1624; *Monarco v. Greco* (1950) 35 Cal.2d 621, 623-624; *Jones v. Wachovia Bank* (2014) 230 Cal.App.4th 935, 946-952; *Secrest v. Security National Mortgage Loan Trust* (2008) 167 Cal.App.4th 544, 553.) Viewed in this light, the averments contained in the Complaint are insufficient to trigger the enforcement of an oral promise to convey real property because plaintiff must show more just the oral promise; he must plead facts demonstrating “unconscionable injury” to the promisee or “unjust enrichment” to the promisor. (*Id.*) The degree of “assistance,” offset by the free room and board, does not necessarily show either. Plaintiff needs to provide far more detail regarding the household assistance he provided, which may naturally trigger an adverse donative transfer presumption under Probate Code §21380(a). Finally, there remains the

question of whether a creditor claim was required to preserve the assertion and if plaintiff's creditor claim was procedurally and substantively adequate for that purpose. Some of this might turn on matters taking place in the Probate case.

Demurrer SUSTAINED, WITH 30 days leave to amend.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

JANE DOE v. COUNTY OF CALAVERAS

22CV46492

MOTION TO WITHDRAW AS COUNSEL

This case involves allegations of childhood sexual abuse, and the averred negligence of the County for permitting unsupervised visits between the plaintiff and her biological father. Before the Court is a motion by plaintiff's attorney to withdraw from the case.

An attorney may withdraw as counsel of record if the client breaches the agreement to pay fees, insists on pursuing invalid claims or an illegal course of conduct, or when other conduct by the client renders it unreasonably difficult for the attorney to do his job, including when there is a breakdown in the attorney-client relationship. If the attorney does not have the client's consent, he or she must proceed by way of noticed motion consistent with CCP §§ 284 and 1005, CRPC 1.16 and CRC 3.1362. The motion must be verified, must utilize the designated Judicial Council forms MC-051 – MC-053, and must set forth sufficient detail to permit a trial court to discharge its duty of inquiry regarding the grounds for the motion. (See *Flake v. Neumiller & Beardslee* (2017) 9 Cal.App.5th 223, 230; *Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1134-1136; *Aceves v. Superior Court* (1996) 51 Cal.App.4th 584, 592-593.)

Counsel has failed to provide even a scintilla of facts supporting the desire to abandon the case. Although counsel offers to provide more details in camera, any such proffer would have to be in the presence of the client – whom counsel did not assure would attend. As such, the supporting declaration requires more information.

In addition, all papers in support of the motion must be personally delivered or mailed to the client's "current" address (as confirmed within last 30 days). CRC 3.1362(d)(2) requires the attorney to serve the papers on the client at an address which was actually confirmed to be accurate within the preceding 30 days. If an address cannot be confirmed, and counsel can show due diligence, service can be made to the client's last known address and on the clerk of the court. (CCP §1011(b) and CRC 3.252.) Here, counsel has reportedly utilized the "general delivery" version of mail but without identifying the City center to which general delivery is made, the name upon which the mail is to be held, or that plaintiff actually uses "general delivery" as her primary address. The fact that she *may* qualify for appearances via pseudonym does not obviate the fact that this Court (and for that matter the defendant) will be required to have a good mailing address for plaintiff. She can open a PO Box and have mail sent there using a unique pseudonym.

Motion denied without prejudice. The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal CRC 3.1312 order is required.